

MEMORANDUM

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

Ref: (a) Purchase Requisition (PR) Number: 1301236908

BACKGROUND

In considering the references, FAR 13.106-1(b)(1)(i) states that for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that, under the circumstances of the contract action, only one source is reasonably available (e.g., urgency, exclusive licensing, brand-name, or industrial mobilization).

As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition because only one source will be solicited for this requirement (or for a portion of the requirement), and the requirement is not expected to exceed the simplified acquisition threshold.

DESCRIPTION OF ITEM OR SERVICE

Description of the item or service required: Attend the vessel to inspect and re-build/repair the sprinkler pump for all 4 lifeboats.

Required delivery date/period of performance: March 24, 2025 – March 28, 2025

List known vendor(s) who are able to provide the above-described item or service:

a) Palfinger Marine USA, LLC



Palfinger Marine USA, LLC
2415 T Ave., Suite 204
Anacortes, WA 98221 | USA
www.palfingermarine.com

THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (Select all that apply)

☒ RESTRICTIVE RIGHTS: The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service.

- Palfinger Marine USA, LLC is the OEM service and parts provider for Lifeboats / Rescue Boats manufactured by Palfinger Marine Safety AS, Seimsfoss, Norway and does not have outside certified technicians.
- Palfinger Marine USA, LLC is identified as “owning” the drawings.

☒ **EXCLUSIVE LICENSING AGREEMENTS:** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is ONLY ONE authorized distributor or technical representative for the OEM.

- Palfinger Marine USA, LLC is the OEM with no outside service vendors.

☐ **CRITICAL SHIP EQUIPMENT:** The required item is critical ship equipment, the failure of which poses a hazard to the ship, crew, or environment.

☐ **STANDARDIZATION / BRAND NAME:** Per MSC's standardization initiative, only the specified make/model of the equipment/parts will satisfy the Government's needs for additional units or replacement items.

☐ **FORM, FIT, AND FUNCTION:** The item is a direct replacement part/component for existing equipment and must be compatible in terms of form, fit, and function with existing configurations.

☒ **UNUSUAL AND COMPELLING URGENCY:** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits.

- Date on which the requirement was identified: 18MAR25
- Required delivery date / Period of Performance: 24-28MAR
- Estimated production lead time: 1 day
- CASREP Number: 25-023 & 25-024

ANTICIPATED DOLLAR VALUE OF PROCUREMENT

Anticipated Dollar Value: \$29,250.00

CERTIFICATIONS AND APPROVALS

Technical / Requirement Certification: I certify that the facts and representations under my cognizance, which are included in this justification, are complete and accurate to the best of my knowledge and belief.

Position	Name	Title	Signature
Supervisory Port Engineer	[REDACTED]	Supervisory Port Engineer, N757D	[REDACTED]
Contract Specialist	[REDACTED]	Contract Specialist, N104D	[REDACTED]
Contracting Officer	[REDACTED]	Contracting Officer, N104D	[REDACTED]